

3. CHHIM, SR., ET AL. v. VILCHIS, ET AL., 24CV1508**Discovery Motions**

On August 3, 2026, defendant County of El Dorado (“defendant”) filed a total of 15 motions to compel — three separate motions to compel against five plaintiffs: (1) Vantham Chhim, Sr.; (2) Vantham Chhim, Jr.¹; (3) Koy Chhim; (4) Honn Chhim; and (5) Chheunger Leng. Defendant moves to compel each plaintiff’s responses to Form Interrogatories and Request for Production, both Set One. Additionally, defendant moves to deem all matters in its Request for Admissions, Set One, admitted. Defendant seeks a monetary sanction of \$400.00 against each plaintiff, jointly and severally with their attorney, for a total of \$2,000.00. Additionally, with respect to each plaintiff’s alleged failure to respond to Request for Production, Set One, defendant seeks an additional \$1,000 sanction under Code of Civil Procedure section 2023.050, subdivisions (a)(1) and (a)(3).

No opposition was filed.

1. Legal Principles

If a party to whom interrogatories or requests for production were directed fails to serve a timely response, the propounding party may move for an order compelling responses. (Code Civ. Proc., §§ 2030.290, subd. (b) [interrogatories], 2031.300 [request for production]; see *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.) All that need be shown in the moving papers is that a set of interrogatories or request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See, *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905–906.)

¹ Vantham Chhim, Jr. is a minor and has settled his claim with all named defendants other than defendants County of El Dorado and State of California. On July 16, 2024, the court appointed the minor’s father, plaintiff Vantham Chhim, Sr., as guardian ad litem. On January 29, 2026, the court approved the minor’s compromise (the amended petition for minor’s compromise was filed September 18, 2025).

Upon granting a motion to compel responses to interrogatories or request for production, the court shall impose a monetary sanction under Code of Civil Procedure section 2033.010, et seq. against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.290, subd. (c) [interrogatories], 2031.300, subd. (c) [request for production].)

A party served with requests for admission must serve a response within 30 days. (Code Civ. Proc., § 2033.250.) Failure to serve a response entitles the requesting party, on motion, to obtain an order that the genuineness of all documents and the truth of all matters specified in the requests for admission be deemed admitted, as well as an order granting a monetary sanction. (Code Civ. Proc., § 2033.280, subd. (b).) When such a motion is made, the court must grant the motion and deem the requests admitted, and must order a monetary sanction, unless it finds that prior to the hearing, the party to whom the requests for admission were directed has served a proposed response that is in substantial compliance with the provisions governing responses. (Code Civ. Proc., § 2033.280, subd. (c); *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776, 778; see also *Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 395–396 [“two strikes and you’re out”].)

2. Discussion

In this case, defendant propounded the discovery requests at issue upon each responding party, respectively, on January 22 and/or March 16, 2026, via email. (Nott Decl., ¶ 2.) For those discovery requests propounded on January 22, 2026, on February 24, 2026, defense counsel granted each plaintiff a 30-day extension. (Nott Decl., ¶ 3.) Accordingly, the response deadline for the discovery requests propounded on January 22, 2026, was March 24, 2026. (Nott Decl., ¶ 3.)

Plaintiffs did not request any extension for the discovery requests propounded on March 16, 2026. For those requests, the response deadline was April 17, 2026 (30 calendar days, extended by two court days for electronic service).

As of the time of the filing of the motion, no response had been served to any discovery request.

Good cause appearing, each motion to compel is granted. The court also finds a monetary sanction against each plaintiff in the total amount of \$400.00 to be reasonable in this case under the Civil Discovery Act. Each monetary sanction is imposed against each plaintiff and their attorney of record, jointly and severally.

The court declines to impose any additional \$1,000.00 sanction against any plaintiff under Code of Civil Procedure section 2023.050, subdivisions (a)(1) or (a)(3),² considering that: (1) there is no evidence that plaintiff did not respond in good faith to a request for production; and (2) there is no meet and confer requirement for a motion to compel responses (as opposed to a motion to compel further responses).

TENTATIVE RULING # 3: ALL 15 DISCOVERY MOTIONS ARE GRANTED. THE COURT AWARDS MONETARY SANCTIONS AS REQUESTED. WITHIN 30 DAYS OF THE NOTICE OF ENTRY OF ORDER, EACH PLAINTIFF SHALL SERVE THEIR VERIFIED RESPONSE TO DEFENDANT'S FORM INTERROGATORIES AND REQUEST FOR PRODUCTION, BOTH SET ONE, AND PAY DEFENDANT A MONETARY SANCTION OF \$400. EACH MONETARY SANCTION IS IMPOSED AGAINST EACH PLAINTIFF AND THEIR ATTORNEY OF RECORD, JOINTLY AND SEVERALLY. ADDITIONALLY, THE COURT DEEMS EACH OF THE MATTERS

² Code of Civil Procedure section 2023.050 authorizes an additional \$1,000 monetary sanction for any party, person, or attorney who did not respond to a request for production in good faith (Id., subd. (a)(1)) or any party, person, or attorney who fails to meet and confer with the requesting party in a reasonable and good faith attempt to resolve informally any dispute concerning the request (Id., subd. (a)(3)).

IN THE REQUEST FOR ADMISSION (SET ONE) PROPOUNDED UPON EACH PLAINTIFF
ADMITTED.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19
CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR
ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S
WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE
DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO
APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID
NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.